

26STCV12044 26STCV12044

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Case Number: 26STCV12044 Hearing Date: September 23, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: September

23, 2026

Case Name: ERICK SALAS v. RALPHS

GROCERY COMPANY, et al.

Case No.: 26STCV12044

Motion: Demurrer with Motion to Strike

Moving Party: Defendant Ralphs Grocery Company dba Ralphs and
the Kroger Co.

Responding Party: Plaintiff Erick Salas

Notice: OK

Ruling: The Demurrer to

the first, second, third, and fifth causes of action is overruled.

The

Motion to Strike is granted as to punitive damages and page 11, paragraphs

1(c), 2(c), and 3(c) of the prayer for relief are stricken..

Moving party to
give notice.

The Court encourages all parties to appear remotely via LA
CourtConnect. If submitting on the
Court's tentative ruling, please follow the instructions provided above.

BACKGROUND

On April 15, 2026, Plaintiff Erick
Salas filed the operative Complaint for (1) assault, (2) battery, (3)
intentional infliction of emotional distress, (4) negligence, and (5) negligent
hiring, supervision and retention.

Defendant Ralphs Grocery Company dba
Ralphs and the Kroger Co. ("Defendant") now demur to the first, second, third,
and fifth causes of action for failure to state sufficient facts. Defendant
also argues that the first and second causes of action for assault and battery,
respectively, are uncertain as allegations do not establish Plaintiffs claim
that this unidentified security guard was employed by Defendant.

DISCUSSION

DEMURRER

When considering demurrers, courts
read the allegations liberally and in context, and "treat the demurrer as
admitting all material facts properly pleaded, but not contentions, deductions
or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.3d 584,
591.) "A demurrer tests the pleadings
alone and not the evidence or other extrinsic matters. Therefore, it lies only
where the defects appear on the face of the pleading or are judicially noticed.
The only issue involved in a demurrer hearing is whether the complaint, as it
stands, unconnected with extraneous matters, states a cause of action." (Hahn v. Mirda (2007) 147 Cal.App.4th
740, 747.) It is error "to sustain a
demurrer without leave to amend if the plaintiff shows there is a reasonable
possibility any defect identified by the defendant can be cured by amendment." (Aubry v. Tri-City Hospital Dist. (1992)
2 Cal.4th 962, 967.)

Uncertainty

Defendant argues that the first and second causes of action are uncertain because the allegations do not establish Plaintiff's claim that the unidentified security guard was employed by Defendant. A defendant may object by demurrer to the pleading on the grounds that a pleading is uncertain, that is, the pleading is ambiguous and unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) "[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond." (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695.) "A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) The Court finds that the Complaint is not uncertain because it is neither ambiguous nor unintelligible since the Complaint clearly alleges that Plaintiff was assaulted and battered by Defendant John Doe while acting within the course and scope of his employment as a security officer engaged by Defendants. (Complaint, ¶¶ 8, 9, 13-18, 25-28.) Thus, the demurrer is overruled as to the first and second causes of action on the ground of uncertainty.

First

Cause of Action: Assault

"The essential elements of a cause of action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed she was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm." (So v. Shin (2013) 212 Cal.App.4th 652, 668–669.)

Here,

Plaintiff sufficiently alleges that Defendant John Doe (1) acted with the intent to cause harmful contact (Complaint, ¶ 13), (2) Plaintiff believed he was about to be touched in a harmful manner, Plaintiff attempted to avoid

contact with Defendant John Doe (Complaint, ¶ 14), (3) Plaintiff did not consent to Defendant John Doe's conduct (Complaint, ¶ 16), (4) Plaintiff was physically and psychologically damaged (Complaint, ¶ 17), (5) as a result of Defendant John Doe's conduct and his threatening and aggressive behavior was a substantial factor in Plaintiff's fear. (Complaint, ¶¶ 17, 18.)

Defendant

argues that missing from the Complaint are any allegations that Defendant or any of its employees acted or engaged in any of the intentional conduct to support a cause of action for assault or battery.

"[V]icarious

liability for torts is imposed by operation of law upon employers for acts of their employees within the course and scope of employment, or upon principals for the acts of their agents." (Chee v. Amanda Goldt Property Management (2006) 143 Cal.App.4th 1360, 1375.) Here, Plaintiff alleges that Defendant John Doe was a security officer or a security guard of the subject premises and that he acted within the course and scope of his employment as a security officer engaged by Defendants. (Complaint, ¶¶ 8, 13.) Furthermore, Plaintiff argues that Defendant John Doe's conduct was required as part of his job duties and was reasonably foreseeable in light of the nature of the employment and circumstances presented. (Complaint, ¶ 22.) Thus, Plaintiff has alleged sufficient facts to show that Defendant is vicariously liable for Defendant John Doe's alleged behavior against Plaintiff. Accordingly, the Court overrules the demurrer to the first cause of action.

Second

Cause of Action: Battery

Defendant

makes the same argument regarding the battery claim, that the Complaint fails to allege that Defendant or any of its employees acted or engaged in any of the intentional conduct to support a cause of action for battery.

"The

elements of civil battery are: (1) defendant intentionally performed an act that resulted in a harmful or offensive contact with the plaintiff's person; (2) plaintiff did not consent to the contact; and (3) the harmful or offensive contact caused injury, damage, loss or harm to plaintiff." (Brown v. Ransweiler (2009) 171 Cal.App.4th 516, 526–527.)

Here,

Plaintiff has alleged that Defendant John Doe intentionally and with the intent to harm, forcefully and physically attacked Plaintiff and did so with such force that Plaintiff suffered injuries and damages (Complaint, ¶ 25), Plaintiff did not consent to the conduct (Complaint, ¶ 26), and as a result of Defendant John Doe's conduct, Plaintiff was physically and psychologically damaged. (Complaint, ¶ 27.) Furthermore, Plaintiff has sufficiently alleged that Defendant John Doe acted within the course and scope of his employment, and thus Defendant is vicariously liable for Defendant John Doe's conduct. (Complaint, ¶¶ 25, 30, 31, 32, 33.) Accordingly, the demurrer is overruled to the second cause of action.

Third

Cause of Action: Intentional Infliction of Emotional Distress

Defendant

argues that the Complaint fails to state sufficient facts to constitute a cause of action for intentional infliction of emotional distress against Defendant.

The

elements of intentional infliction of emotional distress are: "(1) outrageous conduct by the defendant, (2) intention to cause or reckless disregard of the probability of causing emotional distress, (3) severe emotional suffering and (4) actual and proximate causation of emotional distress." (Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903, 921.) "Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff's interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress." [Citations.] (Ibid.)

Here,

Plaintiff alleges that Defendant John Doe acted with the intention of causing or reckless disregard of the probability of causing emotional distress when he physically attacked and assaulted Plaintiff (Complaint, ¶ 35), that Defendant John Doe's conduct was so outrageous as to exceed all bounds of that usually tolerated by a civilized community (Complaint, ¶ 36), that as a result, Defendant John Doe's socially unacceptable conduct Plaintiff has suffered severe and extreme emotional distress including highly unpleasant mental suffering and anguish that no reasonable person in a civilized society would be

expected to endure (Complaint, ¶ 37), and Defendant John Doe's outrageous conduct was the actual and proximate cause of Plaintiff's emotional success. (Complaint, ¶ 38.) Furthermore, Plaintiff has alleged that at all relative times, Defendant John Doe was the employee and/or principal of Defendant and Defendant John Doe was acting within the course and scope of his employment or agency relationship with Defendant. (Complaint, ¶ 40.) Thus, Plaintiff has sufficiently alleged a claim for intentional infliction of emotional distress against Defendant. Accordingly, the demurrer to the third cause of action is overruled.

Fifth

Cause of Action: Negligent Hiring, Supervision and Retention

Defendant

argues that Plaintiff failed to plead sufficient facts for a cause of action for negligent hiring, supervision, and retention.

The

necessary elements for negligent hiring are: (1) that the employer hired the employee; (2) who was incompetent or unfit; (3) that the employer had reason to believe undue risk of harm would exist because of the employment; and (4) that harm occurred. (Federico v. Superior Court (1997) 59 Cal.App.4th 1207, 1213-1214.) Negligence liability will be imposed on an employer if it "knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes." (Phillips v. TLC Plumbing, Inc. (2009) 172 Cal.App.4th 1133, 1139, citing Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054.)

Defendant

argues that Plaintiff blanketly alleges that "Defendants knew or should have known, through the exercise of reasonable care, that Defendant JOHN DOE was unfit or incompetent, and that this unfitness created a particular risk of harm to other" (Complaint, ¶ 54) but does not allege that Defendant John doe had previously remarked or shown any negative attitude from which Defendant should have recognized his incompetence or unfitness to carry out his duty. Defendant also argues that Plaintiff fails to allege that Defendant knew or should have known that the security guard was or became unfit or incompetent and this unfitness or incompetence created a particular risk of harm to others. The Court disagrees.

Here,

Plaintiff alleges that Defendant hired, trained, supervised and/or retained Defendant John Doe (Complaint, ¶ 53), that Defendant John Doe was unfit or incompetent to perform the work for which he was hired and/or retained for (Complaint, ¶ 53), that Defendant knew or should have known through the exercise of reasonable care that Defendant John Doe was unfit or incompetent and that this unfitness created a particular risk of harm to others including Plaintiff (Complaint, ¶ 54), and as a result of Defendant John Doe's unfitness, Plaintiff was physically assaulted and was physically and psychologically damaged. (Complaint, 56, 57.) Thus, the Court finds that Plaintiff sufficiently alleged a claim for negligent hiring, supervision, and retention. Accordingly, the Court overrules the demurrer to the fifth cause of action.

MOTION TO STRIKE

Defendant moves for an order striking Plaintiff's claims for punitive damages, specifically page 11, paragraphs 1(c), 2(c), and 3(c) of the prayer for relief.

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) Civil Code section 3294 authorizes punitive damages upon a showing of malice, fraud, or oppression. Malice is defined as either "conduct which is intended by the defendant to cause injury to the plaintiff," or "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) "Despicable conduct is conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (Mock v. Michigan Millers Mutual Ins. Co. (1992) 4 Cal.App.4th 306, 331.) Fraud under Civil Code section 3294 subdivision (c)(3) "means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." Civil Code section 3294(c)(2) defines oppression as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights."

Specific facts must be alleged in support of punitive damages. (Hillard v. A.H. Robins Co. (1983) 148 Cal.App.3d

374, 391-392.) Facts must be pled to show that a defendant "act[ed] with the intent to vex, injure or annoy, or with a conscious disregard of the plaintiff's rights." (Silberg v. California Life Ins. Co. (1974) 11 Cal.3d 452, 462.) Conduct that is merely negligent will not support a claim for punitive damages. (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1288.)

Here, Plaintiff has alleged that on May 5, 2024, Defendant John Doe forcibly forced Plaintiff to exit the premises and he physically assaulted and pepper sprayed Plaintiff with force (Complaint, ¶ 8), aggressively approached Plaintiff, leaned forward within inches of Plaintiff and in a loud and bellicose manner threatened to touch or grab Plaintiff in a harmful manner (Complaint, ¶ 15), and that Defendant John Doe physically attacked and assaulted Plaintiff (Complaint, ¶ 25.) However, though Plaintiff provides some facts, such as that he was pepper sprayed and removed from the premises, Plaintiff fails to allege sufficient specific facts meet the pleading standard for punitive damages that show malice or oppression as alleged. Thus, the Court grants the motion to strike punitive damages with leave to amend.

CONCLUSION

The Demurrer is OVERRULED to the first, second, third, and fifth causes of action of the Complaint.

The Motion to Strike is GRANTED and page 11, paragraphs 1(c), 2(c), and 3(c) of the prayer for relief are stricken.

Moving party to give notice.